

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 22-23

MARINE TRANSPORT LOGISTICS, INC.
v.
CMA CGM (AMERICA) LLC and CMA CGM, S.A.

**RESPONDENT’S RESPONSE TO COMPLAINANT’S
MOTION FOR RECONSIDERATION OR TO REOPEN DISCOVERY**

Respondent, CMA CGM S.A. (“CMA”), by its undersigned attorneys, responds to the Motion for Reconsideration or to Reopen Discovery filed by Complainant Marine Transport Logistics, Inc. (“MTL”) as follows:

I. Introduction

The motion is styled as one to reconsider the ALJ’s October 30, 2024 Order (the “Order”). However, the connection between the issues addressed in the Order and those MTL raises in the motion are, at best, superficial. The applicable legal standard for reconsideration of interlocutory orders is nowhere to be found in the motion. Nor is there trace of any argument that any such standard is met here. In other words, MTL mounts no legal argument that the Presiding Officer *can* reconsider the Order, nor does MTL explain why she should. Even if this were the motion’s only defect, it would require denial.

But that is not the only defect. Undeterred by these dispositive threshold questions, MTL has presented the Presiding Officer with an eclectic catalogue of grievances and wish-list discovery-related remedies—all completely unrelated to the Order. For this reason, to the extent MTL moves to reopen discovery as a remedy for having its documents stricken from the record, the motion must be denied.

Lastly, MTL's motion should be denied because it is procedurally deficient under 46 CFR Part 502. This procedural deficiency provides yet a third, independent reason that the motion cannot be granted.

II. Applicable Legal Standard

Although the Commission's Rules of Practice and Procedure (the "Rules") do not specifically provide for reconsideration except with respect to a final decision or order of the Commission itself, Rule 12 states that "for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice." *See* 46 C.F.R. §§ 502.261, 502.12.

"A presiding officer may properly reconsider and reverse interlocutory rulings made prior to the initial decision, whether those rulings are made by him or her or by a previously assigned administrative law judge." *R.O. White Co., et al v. Port of Miami Terminal Operating Co., et al*, No. 06-11, R. Doc. No. 50, 2007 FMC LEXIS 31, *11 (Oct. 29 2007) (collecting cases). A presiding officer's discretion to revisit her own interlocutory rulings is "limited by the law of the case doctrine and subject to the caveat that where litigants have once battled for the court's decision, they should neither be required, nor without good reason permitted, to battle for it again." *Murray v. Amalgamated Transit Union*, 99 F. Supp. 3d 149, 153 (D.D.C. 2015) (quoting *Singh v. George Washington Univ.*, 383 F. Supp. 2d 99, 101 (D.D.C. 2005) (internal punctuation omitted).

In general, federal courts operating under the Federal Rules of Civil Procedure "will grant a motion for reconsideration of an interlocutory order *only* when the movant demonstrates: (1) an intervening change in the law; (2) the discovery of new evidence not previously available; or (3) a clear error in the first order." *Stewart v. Panetta*, 826 F. Supp. 2d 176, 177 (D.D.C. 2011) (citation omitted). "Reconsideration will generally be denied unless the moving party can point to

controlling decisions or data that the court overlooked—matters, in other words, that might reasonably be expected to alter the conclusion reached by the court.” *Shrader v. CSX Transp., Inc.*, 70 F.3d 255, 257 (2d Cir. 1995). Further, in the interest of finality, predictability and economy of judicial resources “as a rule a court should be loathe [sic] to revisit its own prior decisions in the absence of extraordinary circumstances”. *Murray*, 99 F. Supp. 3d at 153 (quoting *Brookens v. United States*, 308 F.R.D. 14, 15 (D.D.C. 2015)). To rebut this presumption against reconsideration, “[t]he moving party has the burden of showing that reconsideration is warranted, and that some harm or injustice would result if reconsideration were to be denied.” *Pueschel v. Nat’l Air Traffic Controllers’ Ass’n*, 606 F. Supp. 2d 82, 85 (D.D.C. 2009) (citing *Def. of Animals v. Nat’l Institute of Health*, 543 F. Supp. 2d 70, 76 (D.D.C. 2008)). Motions for reconsideration are analogous to a form of requests for interlocutory appeal, which are assessed using the following factors: (1) substantial delay, (2) expense, (3) detriment to the public interest, or (4) undue prejudice to a party. *Bed Bath and Beyond, Inc. v. Orient Overseas Container Line Ltd., et al.*, No. 23-02, R. Doc. No. 34, 2023 FMC LEXIS 535, *3 (denying a motion for reconsideration or leave to appeal an interlocutory order) (ALJ Wirth Nov. 9, 2023).

These factors typically weigh against reconsideration where the movant is seeking to reopen discovery at a late stage. As ALJ Wirth has explained, in denying a complainant’s motion that sought to reopen discovery at the briefing stage:

Complainants’ motion for reconsideration is untimely and thus procedurally improper. As Complainants acknowledge, the discovery they are seeking “has been sought all along” and the motion to compel has already been ruled upon. At this stage of the proceeding, the case has been pending for almost a year, discovery is over, and the parties have been ordered to file their briefs. Any party who believes the other party did not provide relevant requested discovery should raise those arguments in their briefs as previously instructed.

Nnabugwu Chinedu Andrew, et. al v. Marine Transport Logistics, Inc., et. al, No. 20-12, R. Doc. No. 26, 2021 FMC LEXIS 103, at *2 (denying a motion for reconsideration) (ALJ Wirth Jul. 2, 2021), *aff'd*, 2022 FMC LEXIS 410.

III. The motion contains no basis for reconsideration of the Order or for granting MTL any of the relief sought.

Every motion must “state clearly and concisely the purpose of and the relief sought by the motion, the statutory or principal authority relied upon, and the facts claimed to constitute the grounds supporting the relief requested”. 46 CFR §502.69(e). MTL’s motion does no such thing.

First, MTL does not articulate or apply any legal standard under which reconsideration of the Order would be warranted or permissible. And even if the Presiding Officer overlooks this flaw (respectfully, she should not), even a cursory application of the proper standard set forth above reveals that MTL has not shown in its motion that even one of the factors is met.

Nor could it. Reconsideration would *cause* substantial delay rather than prevent it. As discussed more fully above and below, the relief MTL has requested will not change the facts that formed the basis of the Order: MTL submitted new evidence in its Reply brief that cannot be considered and is not competent evidence of any relevant fact. Reopening discovery when the case is fully briefed and ripe for decision to allow MTL to unleash additional rounds of burdensome requests can never change the fact that MTL never introduced evidence of the damages it claims. No documents in CMA’s possession could establish MTL’s alleged loss of profits. Only MTL could have possibly done that, and it didn’t. In addition to the delay it would cause, granting MTL’s motion would result in significant expense to CMA arising from responding to what, again, would be a futile round of discovery. There is likewise no public interest involved here. And the last factor, undue prejudice, weighs against reconsideration as well. For all the reasons given in the Order for striking the documents in the first place, MTL can hardly claim that its current

predicament was caused by prejudicial outside forces. It is not undue prejudice when a litigant suffers the consequences of its own failures to produce evidence and to abide by the rules of procedure. MTL has not established that reconsideration would be proper under the applicable law, nor did it attempt to do so in the motion. For this reason, the motion must be denied.

Second, even if MTL's motion identified a valid basis for reconsideration of the Order (it does not), MTL's motion must still be denied because the relief sought bears no relation to the Order or its effects. The Order strikes one portion of one page of MTL's Reply Brief and the exhibits purportedly incorporated by reference into that section (Exhibits 55, 56, and 57). But the motion for reconsideration does not actually seek the reversal of the Order's effects.

Instead, the requests in the motion include, among other irrelevant items: a reopening of discovery; permission to propound additional requests for production; 'reconsideration' of MTL's request—which the Presiding Officer *has not yet ruled on*— for an adverse inference against CMA; and 'reconsideration' of a comment in a concurring opinion by one Commissioner regarding his unprompted opinion on whether sanctions were appropriate as a result of CMA's efforts to adhere to Hague Convention procedures for foreign discovery.¹ In other words, things that have nothing to do with the Order. These requested remedies are somehow at once both excessive *and* insufficient to address the prejudice MTL claims it will suffer if the Order stands as written. At this risk of repetition: MTL *does not move for reinstatement of the stricken documents into the record*. For this reason, to the extent MTL moves to reopen discovery as a remedy for having its documents stricken from the record, the motion must be denied.

¹ CMA's position is that these issues, along with the specific factual assertions MTL offers as relates to them, do not warrant extended discussion here. CMA respectfully submits that the parties and the Presiding Officer will better serve judicial economy and principles of fairness by focusing attention on the issues properly at issue (namely, the Order, MTL's request that it be reconsidered, and the legal principles that govern MTL's request). However, should the Presiding Officer decide *sua sponte* to consider the new and extraneous arguments raised by MTL in its Motion, CMA is ready and willing to address same via supplemental briefing.

Lastly, the motion is procedurally improper in at least two ways. Counsel for MTL failed to confer with CMA's counsel as required by 46 CFR §502.71(a) prior to filing the motion. Moreover, FMC precedent dictates that motions for reconsideration are "untimely and thus procedurally improper" where "the case has been pending for almost a year, discovery is over, and the parties have been ordered to file their briefs". *Nnabugwu*, 2021 FMC LEXIS 103 at *2. Here, MTL's motion is even less timely than that at issue in *Nnabugwu*: this case has been pending for two years, and the parties have not only been ordered to file briefs but have in fact filed them (four months ago). These procedural deficiencies provide yet a third, independent reason that the motion cannot be granted.

IV. Conclusion and Request for Relief

For the foregoing reasons Respondent CMA respectfully requests that Complainant's Motion for Reconsideration or to Reopen Discovery be denied, with prejudice.

Dated: November 8, 2024

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on the 8th day of November 2024 a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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